

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #13	CCRB Case #: 201900610	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 01/07/2019 1:30 AM, Monday, 01/07/2019 10:00 PM	Location of Incident: Intersection of 94th Street and 23rd Avenue; 115th Precinct stationhouse	18 Mo. SOL 2/21/2021	Precinct: 115		
Date/Time CV Reported Sat, 01/19/2019 10:33 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 01/19/2019 10:33 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Bryan Gregory	02848	956700	115 PCT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Myers	25089	963176	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Bryan Gregory	Discourtesy: At the intersection of 94th Street and 23rd Avenue in Queens, Police Officer Bryan Gregory spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Bryan Gregory	Abuse: At the intersection of 94th Street and 23rd Avenue in Queens, Police Officer Bryan Gregory damaged § 87(2)(b)'s property.	B . Unsubstantiated
C . POM Bryan Gregory	Off. Language: At the intersection of 94th Street and 23rd Avenue in Queens, Police Officer Bryan Gregory made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated
D . An officer	Abuse: At the 115th Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding an officer.	D . Officer(s) Unidentified

Case Summary

On January 19, 2019, § 87(2)(b) filed this complaint via the CCRB website.

On January 7, 2019, at approximately 1:30 a.m., § 87(2)(b) was driving southbound on 94th Street toward 23rd Avenue in Queens. Several vehicles at the intersection of 94th Street and 23rd Avenue were not moving and were blocking traffic. § 87(2)(b) drove around the vehicles and his vehicle was stopped by PO Bryan Gregory and PO Brian Myers, both of the 115th Precinct. PO Gregory cursed at § 87(2)(b) multiple times (**Allegation A – Discourtesy**, § 87(2)(g) § 87(2)(b) provided his driver's license to PO Gregory, who damaged it by twisting it repeatedly (**Allegation B – Abuse of Authority**, § 87(2)(g) PO Gregory made offensive remarks based on § 87(2)(b)'s race (**Allegation C – Offensive Language**, § 87(2)(g) PO Myers issued § 87(2)(b) a summons for § 87(2)(b) (Board Review 03). That same day around 10:00 p.m., § 87(2)(b) went to the 115th Precinct stationhouse to file a complaint, but an officer refused to process § 87(2)(b)'s complaint (**Allegation D – Abuse of Authority**, § 87(2)(g)).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Body Worn Camera footage from PO Gregory and PO Myers was obtained (**Board Review 01, 02**). However, the footage does not capture the period in time in which the allegations are to have occurred.

Findings and Recommendations

Allegation (A) Discourtesy: PO Bryan Gregory spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Bryan Gregory damaged § 87(2)(b)'s property.

Allegation (C) Offensive Language: Police Officer Bryan Gregory made remarks to § 87(2)(b) based upon race.

It is undisputed that § 87(2)(b) was stopped on 94th Street near the intersection of 23rd Avenue for driving across the double yellow lines into the opposite lane of traffic.

§ 87(2)(b) testified that PO Gregory approached § 87(2)(b)'s car while PO Myers stood next to the police vehicle. PO Gregory said to § 87(2)(b) "What the fuck are you doing?" and asked § 87(2)(b) why he was driving on the wrong side of the road. § 87(2)(b) said that he was confused and did not know what was going on. PO Gregory looked at § 87(2)(b)'s license plate and said, "You're confused? You're a TLC driver. People like you don't deserve to be in this country. All of you are the same." PO Gregory said, "Give me your fucking license." § 87(2)(b) § 87(2)(b) complied. PO Gregory took § 87(2)(b)'s license and said, "How the fuck did you get this license? Why do they give licenses to people like you?" As PO Gregory made these remarks, he twisted and bent § 87(2)(b)'s license, causing it to crack. § 87(2)(b) did not respond to PO Gregory's comments. As § 87(2)(b) looked in his glove compartment for his registration, PO Gregory said, "Pull over to the fucking side." § 87(2)(b) § 87(2)(b) complied.

After pulling over, § 87(2)(b) provided his registration to one of the officers, although he could not recall which one. § 87(2)(b) waited for 15 to 20 minutes while the officers were in their vehicle. PO Myers approached § 87(2)(b)'s vehicle, returned his documents, and gave him a summons. § 87(2)(b) did not mention his damaged license to PO Gregory. § 87(2)(b) stated that PO Gregory cursed at him approximately 10 times during the incident (**Board Review 03**).

PO Gregory testified that he approached the driver side of § 87(2)(b)'s car and asked § 87(2)(b) why he was driving in the oncoming lane. PO Gregory ordered § 87(2)(b) to produce his license, registration and insurance. § 87(2)(b) complied. PO Gregory did not recall if there was any damage to § 87(2)(b)'s license when he obtained it. PO Gregory told § 87(2)(b) that he was stopped because § 87(2)(b) had crossed the double yellow lines into oncoming traffic. PO Gregory did not recall what § 87(2)(b) said during their interaction. PO Gregory acknowledged speaking to § 87(2)(b) in an elevated tone due to the noise from the surrounding traffic. § 87(2)(b)'s car and the police vehicle were blocking traffic at the intersection, so PO Gregory ordered § 87(2)(b) to pull over to the right on 23rd Avenue. § 87(2)(b) complied.

PO Gregory approached § 87(2)(b)'s car to continue speaking to § 87(2)(b). PO Gregory did not recall what he said to § 87(2)(b). PO Gregory returned to the police vehicle and gave § 87(2)(b)'s documents to PO Myers, who wrote § 87(2)(b) a summons. PO Myers returned § 87(2)(b)'s documents and gave him the summons. PO Gregory denied that he used any profanity or made any offensive remarks based on § 87(2)(b)'s race during the incident. PO Gregory denied that he or PO Myers committed any action that would have damaged § 87(2)(b)'s license (**Board Review 04**).

§ 87(2)(g) PO Myers did not recall specifically what was said between PO Gregory and § 87(2)(b) but did not hear PO Gregory use any profanity towards PO Gregory. PO Myers did not hear PO Gregory make any offensive remarks based on § 87(2)(b)'s race. When PO Myers received § 87(2)(b)'s documents from PO Gregory, they appeared to be in good condition. PO Myers did not see PO Gregory commit any action that would have damaged § 87(2)(b)'s license. PO Myers denied damaging § 87(2)(b)'s license (**Board Review 05**).

§ 87(2)(g)

Allegation (D) Abuse of Authority: An officer did not process § 87(2)(b)'s complaint regarding an officer.

In a phone statement following his CCRB interview, § 87(2)(b) stated that he went to the 115th Precinct stationhouse on January 7, 2019, at approximately 10:00 p.m. to file a complaint against PO Gregory. An officer, who was standing at the front desk of the stationhouse, told § 87(2)(b) that he could not file his complaint at the stationhouse and that he would have to figure out how to file his complaint online or to call a 1-800 number which he gave to § 87(2)(b). The officer told § 87(2)(b) "I can't rat on my friends." The officer did not take any information from § 87(2)(b). § 87(2)(b) described the officer as an Indian man with dark skin, in his late 20s, 5'7"

tall, weighing 160 to 170 pounds, with black hair, a beard, and dressed in uniform. § 87(2)(b) described a second officer who was also at the front desk as a Hispanic man with light skin, approximately 5'6" tall, chubby, and dressed in uniform. § 87(2)(b) had no interaction with the second officer. **(Board Review 06).**

A search of the NYPD photo terminal yielded three officers assigned to the 115th Precinct, PO Omar Hafiz, PO Islam Syed, and PO Junaid Shah, who matched the general description. NYPD documents confirm that PO Hafiz and PO Syed were not working on the date of the incident. PO Shah was working, but NYPD documents place him in the field at the time of the incident **(Board Review 7)**. As per his memo book, he did not return to the stationhouse until 12:35 a.m. on January 8, 2019 **(Board Review 08)**.

Sgt. Paul Bernal of the 115th Precinct was assigned to the stationhouse front desk during the time of the incident and was interviewed at the CCRB. Sgt. Bernal did not recall § 87(2)(b) or any other civilian attempting to file a complaint against an officer on the day of the incident. Sgt. Bernal did not recall any officers matching the descriptions provided by § 87(2)(b) being present at front desk during the time of the incident **Board Review 09**).

§ 87(2)(g)
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Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party **(Board Review 10)**.
- PO Gregory has been a member-of-service for five years and had been a subject in five additional complaints and five additional allegations, none of which were substantiated.

§ 87(2)(g)
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- On February 13, 2019, this case was sent to mediation and on April 25, 2019, the case was returned to investigation as the officers declined to mediate.
- As of December 23, 2019, § 87(2)(b) has not filed a Notice of Claim regarding this incident **(Board Review 11)**.

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date